

Deep Chand Sahani v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 March 2021 · WRIT - C No. 7220 of 2021 · **Writ disposed; petitioner relegated to Clause 6.5 on the bill assessment.**

HEADNOTE

A writ challenging assessment of an electricity bill is not entertained on the writ side. The High Court held that the petitioner's appropriate remedy is to approach respondent no. 2 under Clause 6.5 of the Electricity Supply Code, 2005, and disposed of the petition accordingly.

FACTUAL SUMMARY

Deep Chand Sahani filed Writ-C No. 7220 of 2021 in the Allahabad High Court against the State of U.P. and two others, challenging assessment of an electricity bill. On 16 March 2021 none appeared for the petitioner and the matter was listed as fresh for 26 March 2021. On that date counsel for the petitioner and for respondent no. 2 were heard on the challenge to the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-assessment-writ-relegated-to-6.5

HOLDING

A writ petition seeking to challenge the assessment of an electricity bill is disposed of; the petitioner's appropriate remedy is to approach the concerned respondent by invoking Clause 6.5 of the Electricity Supply Code, 2005. ¶ 2

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging the electricity bill assessment was disposed of because Clause 6.5 is the appropriate alternate remedy. ¶ 2

6.5-representation-as-appropriate-remedy The Court directed the petitioner to approach respondent no. 2 under Clause 6.5 rather than examining the assessment in writ. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL ASSESSMENT

The Court did not examine the assessment on merits and relegated the petitioner to Clause 6.5. ¶ 2